

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Monique West	Team: Squad #02	CCRB Case #: 201406032	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/11/2014 12:10 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/11/2015	Precinct: 114		
Date/Time CV Reported Wed, 06/11/2014 12:19 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/18/2014 3:49 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Nelson Cordero	17241	944462	PSA 9
2. POM Michael Scally	05741	948132	PSA 9
3. POM Juan Brito	04613	934533	PSA 9

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Scally	Abuse: PO Michael Scally stopped § 87(2)(b)	A . Unsubstantiated
B . POM Juan Brito	Abuse: PO Juan Brito stopped § 87(2)(b)	B . Unsubstantiated
C . POM Nelson Cordero	Abuse: PO Nelson Cordero stopped § 87(2)(b)	C . Unsubstantiated
D . POM Michael Scally	Abuse: PO Michael Scally searched § 87(2)(b)	D . Unsubstantiated
E . POM Michael Scally	Abuse: PO Michael Scally strip-searched § 87(2)(b)	E . Unsubstantiated
F . POM Juan Brito	Abuse: PO Juan Brito drew his gun.	F . Unfounded
G . POM Michael Scally	Abuse: PO Michael Scally threatened to arrest § 87(2)(b)	G . Exonerated

Case Summary

On June 11, 2014, at approximately 12:10 a.m., Officer Michael Scally, Officer Juan Brito and Officer Nelson Cordero of PSA 9 stopped § 87(2)(b) in front of § 87(2)(b) in Queens for suspicion of criminal possession of a weapon (**allegations A, B and C**). Officer Scally allegedly removed § 87(2)(b) cell phone from his hip, entered all of his pockets, and then swiped his hand between § 87(2)(b) butt cheeks and stuck a finger in his anus (**allegations D and E**). He allegedly did so over his boxers and did not touch his bare skin. The officers handed § 87(2)(b) his identification back when § 87(2)(b) noticed that Officer Brito had his gun drawn behind his back (**allegation F**). After they allowed § 87(2)(b) to leave, he began to record the officers with his phone. Officer Scally told him that he could be locked up if he did not stop following them (**allegation G**). No weapon was found. § 87(2)(b) was not arrested or summonsed. § 87(2)(b) filed his complaint with the Internal Affairs Bureau (complaint encl. C4-5, CCRB statement encl. C6-11, statement to IAB encl. C3).

Mediation, Civil and Criminal Histories

§ 87(2)(g) it was determined that this case was ineligible for mediation. The Notice of Claim has been requested and will be added to the case file upon receipt. [§ 87(2)(b) (3)&(4)] [§ 87(2)(c)]

§ 87(2)(a) FCT § 380.1 § 784

Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) § 87(2)(b)
- Officer Brito has been a member of the NYPD for 10 years, has had three previous CCRB allegations involving two cases with no substantiated allegations. § 87(2)(g)
- Officer Scally has been a member of the NYPD for five years, has had three previous CCRB allegations involving two cases with no substantiated allegations. § 87(2)(g)
- Officer Cordero has been a member of the NYPD for seven years, has had three previous CCRB allegations involving two cases with no substantiated allegations. § 87(2)(g)

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

Allegation A- Abuse of Authority: PO Juan Brito stopped § 87(2)(b)

Allegation B- Abuse of Authority: PO Nelson Cordero stopped § 87(2)(b)

Allegation C- Abuse of Authority: PO Michael Scally stopped § 87(2)(b)

It is undisputed that Officer Brito, Officer Cordero and Officer Scally stopped § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that he was walking home when he saw a friend and gave him a handshake. As he did this, he saw three males walking towards him and continued to walk. He stated that he did not know that the men were officers at the time but later stated that when the officers asked him why he walked away he told them it was because he did not do anything wrong and he did not know that it was a rule that he had to stand still after seeing them. In a follow-up statement, § 87(2)(b) admitted that he saw the officers before approaching his friend and they saw him as well but he continued to walk away. In his statement to IAB, § 87(2)(b) admitted that he knew they were officers and walked away to avoid any problems. § 87(2)(b) stated that his phone was clipped to his waistband.

Officer Scally stated that he observed § 87(2)(b) with two other men and he saw § 87(2)(b) hand one item to each man. He initially stated that he saw them passing things back and forth to each other. He did not know what the objects were and could not describe them. The men saw the officers and walked off. § 87(2)(b) walked off at a brisk pace and then began to jog. Officer Scally saw § 87(2)(b) place a black square object that was in his right hand into his waistband. The object caused a bulge underneath his shirt which was consistent with what the butt of a firearm would look like. At this point, they mutually decided to stop § 87(2)(b)

Officer Cordero stated that he observed § 87(2)(b) hand a small object to one of the two men. Officer Cordero did not see the object or where § 87(2)(b) retrieved the object from. Neither man handed § 87(2)(b) anything. Officer Cordero initially stated that the men saw them and ran off but then stated that they all took off running after he yelled, “Police, don’t move.” He later retracted that statement and stuck with his original one. Officer Cordero described the speed at which § 87(2)(b) ran as a jog. After § 87(2)(b) ran off, Officer Cordero noticed a black rectangular object in his right hand. Officer Cordero could not give the dimensions of the object but stated that it was bigger than his hand. § 87(2)(b) put the item in the front right side of his waistband and continued to run with his hand over the object, which was now under his shirt. Officer Cordero believed the object to be a firearm and ordered § 87(2)(b) to stop.

Officer Brito stated that the two men handed § 87(2)(b) money but he could not tell if § 87(2)(b) handed them anything because things happened quickly. When they saw the officers, they walked away at a fast pace. They went after § 87(2)(b) because all of them were familiar with him and he is known to carry firearms. In addition, he started holding the right side of his waistband, as he was walking, as if he was holding his pants up. There was no other indication that § 87(2)(b) had a weapon on him. When asked what he believed the weapon to be, he stated, “It could have been a gun.”

§ 87(2)(b), § 87(2)(e), § 87(2)(g)

§ 87(2)(b) All three officers stated that § 87(2)(b) was known to be a robbery recidivist and to carry firearms. § 87(2)(b) has never been convicted for possession of a weapon or for robbery.

§ 87(2)(g)

It is therefore recommended that allegations A, B, and C be closed as **unsubstantiated**.

Allegation D- Abuse of Authority: PO Michael Scally searched § 87(2)(b)

Allegation E- Abuse of Authority: PO Michael Scally strip-searched § 87(2)(b)

§ 87(2)(b) alleged that Officer Scally removed his cell phone from his hip, entered all of his pockets, and then swiped his hand between § 87(2)(b) butt cheeks and stuck a finger in his anus outside his underwear.

§ 87(2)(a) PHL § 18(6)

Officer Scally stated that he frisked the area on § 87(2)(b) waistband where he observed the bulge but did not further frisk him or search him. He denied swiping his hand between § 87(2)(b) butt cheeks or sticking a finger into his anus. Officer Cordero corroborated this. Officer Brito stated that Officer Scally frisked § 87(2)(b) entire waistband and entered his right pocket but did not further frisk or search him.

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that allegations D and E be closed as **unsubstantiated**.

Allegation F- Abuse of Authority: PO Juan Brito drew his gun.

In his sworn statement, § 87(2)(b) alleged that an officer questioned him about guns. During a follow-up phone statement, § 87(2)(b) stated that he did not say an officer questioned him about guns but stated that Officer Brito had his gun drawn behind his back. § 87(2)(b) stated that he did not notice that Officer Brito's gun was behind his back until after the officers searched him and handed him back his identification.

Officer Brito denied that he or his partner drew their weapons and his partners corroborated this.

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that allegation F be closed as **unfounded**.

Allegation G- Abuse of Authority: PO Michael Scally threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that the officers handed him his identification and phone back and told him to leave. He followed them around for approximately 13 minutes asking for their names and stating that they violated him. The officers provided their names. Officer Scally told him that he could be locked up if he did not stop following them. The officers repeatedly told him to go home and to stop following them but he refused.

The video footage which § 87(2)(b) provided shows that § 87(2)(b) had been following the officers a couple of minutes prior to asking them their names. When he did ask them for their names, they provided it although they stated that they had already provided it. § 87(2)(b) continued to follow the officers for another couple of minutes, stating that he was going to make this an issue and that it was going to be an "easy 50,000." The officers continued to tell him to go home but he refused (video footage summary, encl. C10).

A person is guilty of harassment in the second degree, when, with intent to harass, annoy or alarm another person he or she follows a person in or about a public place or he or she engages

in a course of conduct or repeatedly commits acts which alarm or seriously annoy such other person and which serve no legitimate purpose. Penal Law code 240.26 (encl. A1).

§ 87(2)(g)

. It is therefore recommended that allegation G be closed as **exonerated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date